

THE CASE OF WILLIAM GOULDSTONE.—The *Law Times* says :—"The conviction of William Gouldstone for the murder of his five children at Walthamstow was inevitable when his case was tested by the law of insanity, as laid down by the Judges and approved by the House of Lords in M'Naughten's case (10 Cl. and Fin. 200 ; 1 C. and K. 130). It was there decided, and it is still the law, that if a man is in the condition of mind to know that the act he is committing is wrong, and consequently punishable, he must be held responsible for the commission of that act. Thus the question of knowledge of right and wrong in the abstract is not now put generally and indefinitely, as was formerly the case after "R. v. Bellingham" (Coll. 636) but is put in reference to the particular act and the particular time of committing it. It is to be hoped that the circumstances attending the Walthamstow murder will convince the Legislature that the time has arrived to enlarge the hard and fast rule laid down by M'Naughten's case. Gouldstone, it is true, was perfectly conscious of the enormity of the crime he was committing ; he knew and expressed himself willing to pay its penalty, and according to the present state of the law was clearly guilty of murder ; but when it is remembered that there was in his case a total absence of any of those motives which almost invariably dictate the crime of murder, and that insanity was hereditary in his family, we cannot help seeing that, though the murderer perfectly understood the nature of his act and its consequences, nevertheless his control over his own actions was suspended to such an extent that he was no longer a free agent but became the victim of an insane and irresistible impulse. It is hard to comprehend on what principle a man should be hung for committing an act which it is impossible for him to resist. It may be argued that no man would ever commit a murder unless urged by an insane impulse, and that if the present ruling of the law be enlarged the murderer will always be able to shelter himself under the plea of insanity—the *j'ai vu rouge* of the French criminal. But it is seldom that no inducement besides an insane impulse is discoverable in the mind of a murderer, and if murder is prompted by absolutely none of the motives which would influence a sane person, if a man kills a human being whom he loves merely because voices in his diseased brain whisper to him, 'The devil wiles it,' 'He must have red blood,' or 'Your loved ones must die,' surely the prevention of a lunatic asylum is better suited to his case than the cure of the gallows."